

**IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF DELAWARE**

In re:

Omnis Pleasants, LLC,¹

Debtor.

)
) Chapter 11
)
) Case No. 26-11169 (KBO)
)
) Ref Docket No. 7
)

**INTERIM ORDER (I) AUTHORIZING (A) PAYMENT
OF PREPETITION WAGES, SALARIES AND RELATED
WORKFORCE OBLIGATIONS, AND (B) CONTINUATION OF
BENEFITS PROGRAMS; AND (II) GRANTING RELATED RELIEF**

Upon the motion (the “**Motion**”)² filed by the above-captioned debtor and debtor in possession (the “**Debtor**”) seeking entry of an order (this “**Interim Order**”) (i) authorizing, but not directing, (a) the Debtor, in its sole discretion, to continue the Workforce Programs and pay certain Wages, Health & Welfare Benefit Obligations, and other of the Debtor’s Workforce Obligations incurred prior to the Petition Date, and to continue to maintain and honor all obligations in respect of the Workforce Obligations in the ordinary course of business, and (b) banks and other financial institutions to honor and process check and electronic transfer requests related to the foregoing, and (ii) granting related relief, including scheduling a Final Hearing, all as more fully set forth in the Motion; and upon the First Day Declaration; and this Court having jurisdiction over this matter in accordance with 28 U.S.C. §§ 157 and 1334 and the Standing Order; and this Court having found that this is a core proceeding pursuant to 28 U.S.C. § 157(b)(2) and that this Court may enter a final order consistent with Article III of the United States Constitution; and this Court having found that venue of the Chapter 11 Case is proper pursuant to 28 U.S.C. §§

¹ The last four digits of the Debtor’s tax identification number are 2673. The location of the Debtor’s principal place of business and the Debtor’s service address is One Power Station Boulevard, Belmont, West Virginia, 26134.

² Capitalized terms used but not otherwise defined herein shall have the meaning ascribed to them in the Motion.

1408 and 1409; and this Court having found that the Debtor's notice of the Motion and opportunity for a hearing on the Motion were appropriate under the circumstances and no other notice need be provided; and this Court having reviewed the Motion and having heard the statements in support of the relief requested therein at a hearing before this Court; and this Court having determined that the legal and factual bases set forth in the Motion establish just cause for the relief granted herein; and upon all of the proceedings had before the Court after due deliberation and sufficient cause appearing therefor,

IT IS HEREBY ORDERED THAT:

1. The Motion is **GRANTED** as set forth herein on an interim basis.
2. The final hearing (the "**Final Hearing**") on the Motion shall be held on September 3 2026, at 1:00 p.m. prevailing Eastern Time. Any objections or responses to entry of a final order on the Motion shall be filed with the Court, and served so as to be received by the following parties, by no later than 4:00 p.m., prevailing Eastern Time, on August 19, 2026: (i) proposed co-counsel to the Debtor, (a) Young Conaway Stargatt & Taylor, LLP, Rodney Square, 1000 North King Street, Wilmington, Delaware 19801, Attn: Andrew L. Magaziner (amagaziner@ycst.com); Robert F. Poppiti, Jr. (rpoppiti@ycst.com); and S. Alexander Faris (afaris@ycst.com), and (b) Herbert Smith Freehills Kramer (US) LLP, 1177 Avenue of the Americas, New York, New York 10036, Attn: Alexander Woolverton (alexander.woolverton@HSFKramer.com); Brian Shaughnessy (brian.shaughnessy@HSFKramer.com); Andrew Pollack (andrew.pollack@HSFKramer.com); and Jared C. Borriello (jared.borriello@HSFKramer.com); (ii) counsel to TRAG LLC and RG Energy LLC, DLA Piper LLP (US), 1251 6th Avenue, New York, NY 10020, Attn: Kristine Manoukian (kristine.manoukian@us.dlapiper.com); 1201 North Market Street, Suite 2100, Wilmington, Delaware 19801, Attn: R. Craig Martin (craig.martin@us.dlapiper.com) and 500 Eighth Street NW,

Washington, DC 20004, Attn: Erik F. Stier (erik.stier@us.dlapiper.com); (iii) Office of the United States Trustee for the District of Delaware, 844 King Street, Suite 2207, Lock Box 35, Wilmington, Delaware 19801, Attn: Benjamin Hackman (benjamin.a.hackman@usdoj.gov); and (iv) if any statutory committee has been appointed in the Chapter 11 Case, counsel to such committee. If no objections to the entry of the Final Order are timely filed, this Court may enter the Final Order without further notice or a hearing.

3. The Debtor is authorized, but not directed, to pay, remit, and/or honor the prepetition Workforce Obligations, subject to an aggregate maximum amount during the Interim Period of \$1,477,000.00; *provided* that the Debtor shall not make any payments in excess of the amounts set forth in sections 507(a)(4) and 507(a)(5) of the Bankruptcy Code to any employee without further order of this Court.

4. The Debtor is authorized, but not directed, to continue, modify, change, or discontinue its Workforce Programs and to implement new programs, policies, and benefits in the ordinary course of business during the Chapter 11 Case in its sole discretion, in accordance with the Debtor's prepetition practices and policies.

5. The Debtor is authorized, but not directed, to remit, whether directly or indirectly, any unpaid amounts on account of Deductions or Withholding Obligations to the appropriate third-party recipients or taxing authorities in accordance with the Debtor's historic practices.

6. The banks and financial institutions on which checks were drawn or electronic payment requests made in payment of the prepetition Workforce Obligations approved herein are authorized, but not directed, to receive, process, honor, and pay all such checks and electronic payment requests when presented for payment, and all such banks and financial institutions are

authorized, but not directed, to rely on the Debtor's designation of any particular check or electronic payment request as approved by this Interim Order.

7. Nothing in the Motion or this Interim Order shall be construed as impairing the Debtor's right to contest the validity or amount of any Workforce Obligations, including any Withholding Obligations that may be due to any taxing authority.

8. For the avoidance of doubt, nothing contained in the Motion or in this Interim Order is intended or should be construed to create an administrative priority claim on account of the Workforce Obligations.

9. Nothing contained in the Motion or this Interim Order, and no action taken pursuant to the relief requested or granted (including any payment made in accordance with this Interim Order), is intended as or shall create any rights in favor of, or enhance the status or nature of any claim held by, any person.

10. Nothing in the Motion or this Interim Order shall be deemed or construed to explicitly or implicitly (i) authorize or approve the payment of any amounts that are subject to section 503(c) of the Bankruptcy Code, including, for the avoidance of doubt, payment of any bonus, incentive or severance obligations to or on behalf of any "insider" (as defined by section 101(31) of the Bankruptcy Code) or (ii) violate or permit a violation of section 503(c) of the Bankruptcy Code. If the Debtor seeks to pay any amounts that are subject to section 503(c) of the Bankruptcy Code, the Debtor will seek approval of such payment, if any, by separate motion under section 503(c) of the Bankruptcy Code.

11. Notwithstanding anything herein (a) any payment made or to be made pursuant to the authority granted herein, or any authorization contained herein, shall be subject to and in compliance with any orders authorizing the Debtor's use of prepetition collateral (in each case,

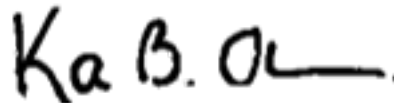
the “**Adequate Protection Order**”), including any budget in connection therewith (the “**Budget**”) and (b) to the extent there is any inconsistency between the Adequate Protection Order and the terms of this Interim Order, the terms of the Adequate Protection Order, including the Budget, shall control. Nothing herein shall modify, alter, or waive any terms, provisions, requirements, or restrictions of the Adequate Protection Order.

12. Notwithstanding Bankruptcy Rule 6004(h), the terms and conditions of this Interim Order shall be immediately effective and enforceable upon its entry.

13. The Debtor is authorized and empowered to take all actions necessary to implement the relief granted in this Interim Order.

14. This Court retains jurisdiction with respect to all matters arising from or related to the implementation, interpretation, or enforcement of this Interim Order.

Dated: July 29th, 2026
Wilmington, Delaware


KAREN B. OWENS
CHIEF JUDGE